



Bharatiya Vidya Bhavan's
SARDAR PATEL INSTITUTE OF TECHNOLOGY
(Autonomous)

Munshi Nagar, Andheri(W), Mumbai – 400 058.

Minutes of the 11th Meeting of the Governing Body

The 11th Meeting of the Board of Governors was held on 23rd April 2022 at 11:00 a.m, in online mode. Following members of the Board attended the meeting:

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| 1. | Prof. Sesha Iyer | - | Chairman |
| 2. | Shri. Asif Mulla | - | Member, Management Nominee |
| 3. | Shri. Suresh Mhatre | - | Member, Management Nominee |
| 4. | Prof. V. M. Gadre | - | Member, from academia |
| 5. | Prof. S. G. Bhirud | - | Member, University Nominee |
| 6. | Prof. Y.S. Rao | - | Teaching Member |
| 7. | Prof. Surendra Rathod | - | Teaching Member |
| 8. | Prof. B.N. Chaudhari | - | Member Secretary |

Following members were granted the leave of absence:

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| 1. | Prof. Ranjan Banerjee | - | Management Nominee |
| 2. | Prof. Pramod Naik | - | Nominee of State Government |
| 3. | Prof. Manju Singh | - | UGC Nominee |
| 4. | Shri Rahul Chari | - | Member, from industry |
| 5. | Prof. Prachi Gharpure | - | Management Nominee |

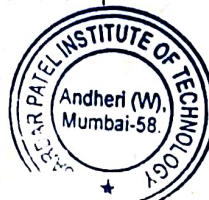
1. **Confirmation of the Minutes of 10th Meeting of the Governing Body held on 03rd September 2021 in online mode.**

The minutes of the 10th meeting of the Governing Body were annexed as annexure A in the agenda of the 11th meeting, and agenda was circulated to all members prior to the meeting. The Principal read out the minutes, briefly revisited the issues, informed about the related action taken and the members reviewed the minutes. Following discussions took place before confirming the minutes.

Shri Mulla Sir commented to also minute that few items are deferred for the discussions in the future meetings. Principal informed that the institute is working on item 3 and 4, whereas items 6-9 are deferred and will be taken in future meeting. He further assured to take these pending issues in future meeting to which Chairman and Shri Mhatre consented.

Prof. Rathod suggested that since starting of autonomous Ph.D is an important matter, must be taken within the 3 months and due process be followed. He insisted that the matter be approved by the academic council and then be ratified by the GB. Prof. Bhirud informed the GB regarding the empowerment of the institute in this

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regard. He indicated that already the Government of Maharashtra has published statutes for autonomous colleges under Maharashtra University Act and the institute can admit the Ph.D students. He informed that since it is the part of act, no one's permission is required. However, Principal expressed that to maintain cordial relations with the parent University, the institute will prefer to write to the university. He further assured that all the PhD rules will be revisited and deliberated among the faculty and again put in the academic council. Only after the approval from academic council the matter will be taken up in the GB.

While commenting on the induction of Prof. Patil as the Professor Emeritus, hon. Chairman inquired whether the Professor Emeritus is an appropriate title. Answering to this both Prof. Gadre and Prof. Bhirud commented that it is the highest honor in the academic circle, and it is an established practice in the institutions like IITs to induct superannuated renowned faculty as Professor Emeritus. Chairman further suggested to engage him in mentoring graduate students, guiding PhD students than asking him to take undergraduate classes. Principal informed that already Professor is requested to publish the monogram on Linear Algebra and conduct a faculty development program for the faculty of engineering colleges in the state.

Further the Chairman commented if this autonomous Ph.D program will be preferred by the students over the university run programs. Prof Chaudhari remarked that the speedy execution of processes may attract the students. Prof Gadre commented that this be pursued in cordial manner with the university, and since it is the right of an institution, required follow up with the university be taken.

At the end of these discussions the minutes of the 10th meeting were confirmed

Resolution 01/11: The minutes of the 10th meeting of the GB as enclosed in annexure A of the Agenda are confirmed noting that item 3,4, 6,7,8 and 9 will be taken in the future meetings.

2. Action Taken Report for the 10th Meeting of the Governing Body

The Principal narrated the Actions taken on the resolutions of the 10th meeting of Governing Body enclosed as annexure B in the agenda of the 10th meeting, while reading the minutes. Members have noted the actions taken and expressed their satisfaction. They have also commented on the actions which are covered in the discussions narrated in item no. 1.

Resolution 02/11 : The Governing Body has noted the actions taken over the minutes of the 10th meeting.

3. 7th Pay implementation-few issues and required revisit to the 6th pay implementation.

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The governing body had accepted the 6th pay recommendations of the AICTE and Government of Maharashtra and implemented it with effect from the 1st Jan. 2006 and had directed the institute for a careful implementation. Since the 7th pay implementation is based on the status of the employee on 31st Dec. 2015, it was essential to settle down the disputes of the 6th pay to make 7th pay implementation flawless. In view of this, the principal felt it necessary to revisit entire 6th pay implementation, reconfirm it carefully and then proceed for the 7th pay implementation. He constituted a committee with the approval of Hon. Chairman, comprising of external experts who are well familiar with the norms and recommendations of the AICTE and Government of Maharashtra. In the beginning the Principal thanked the Chairman for approving the committee comprising of the external experts. He informed that three meetings of the Committee took place, each case was thoroughly studied, the 6th pay implementation of each case was checked, and proposed 7th pay fixation for each case was confirmed. The recommendations of the committee members and the implications of those recommendations were thoroughly discussed in the meeting. The case wise deliberations are as narrated in following paragraphs.

A. Change in grade pay for faculty. (Promotions as the Lecturer senior grade or selection grade as per the definitions of the 5th pay)

Principal narrated the provisions of the Career advance scheme in the 5th pay regime and 6th pay regime. As per CAS in Vth pay, Lecturers were entitled for the positions of Senior lecturer and selection grade positions after complying given eligibility criteria. Whereas in VIth pay it was upgrading from AGP 6000 to 7000 and 7000 to 8000. While implementing CAS in the VIth pay, board had taken decision of granting AGP 7000 and 8000 after 5 yrs from completion of ME, the rationale behind the same being ME was made mandatory entry level qualification as per AICTE and Government of Maharashtra.

He informed the board that committee observed that all faculty members are approved teachers of University of Mumbai and recommended that those teachers who have joined before the 6th pay recommendation of AICTE (Dated 5th March 2010) should be given 7000 AGP after 6 years of the service for B.E/B.Tech qualified teachers, however upgrading to 8000 may be done only after acquiring ME qualification. In doing so institute will be following AICTE and Govt of Maharashtra norms for the pay implementation and CAS implementation in totality. He further informed the board about the financial implications of arising from such modified implementation. This necessitates the revisit of fixation under 6th pay for 10 faculty members leading to the pay arrears of approx. Rs.20 lac.

Shri Mhatre sir appreciated the efforts put in the direction of removing the anomalies and consented on the recommendation. Shri Mulla sir had also consented the correction in interpretation and rectification required in the light of the Government resolutions and regulations. Shri Mhatre Sir has suggested to get the recommendations signed by the committee. Prof. S. G. Bhirud confirmed that he himself was the part of committee and confirmed that the recommendation is in line

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with the Government resolution. In light of the overall recommendations of the committee, Shri Mhatre sir inquired whether the each case was studied by the committee. Principal informed the board that three meetings of the committee took place, each case was thoroughly studied, almost 3 working days were invested by the committee. Prof Bhirud informed that he and another expert Prof. S. V. Joshi were also the part of the committee constituted by the Government for removing of anomalies regarding 6th pay implementation and CAS promotions. He confirmed that the recommendations tabled in the meeting are perfectly in the tune with those submitted by the state committee to the Government. On the query of Shri Mhatre regarding whether the committee recommendations were approved by the Government, Prof Bhirud replied that recommendations are approved, but implementation is not done as a lot of data at state level needs to be confirmed and since in few cases faculty are drawing higher salaries than the due salaries, the working is going on. Hon Chairman suggested to go by committee recommendations as all members on the committee have a vast background and relevant experience at State level. He remarked that adequate communication with the faculty members need to be established. Principal suggested that these recommendations will help institute to remove all anomalies of the present and past, and requested the members to move ahead issue wise as further issues are more involved. He remarked that rather this issue of Change in grade pay for faculty is rather straightforward. He requested that as per the past policy of the institute, CAS to be implemented on the date of the eligibility, however, arrears to be paid from 17th Oct 2015, i.e. issue of CAS GR by GoM for the 6th pay CAS.

Resolution 03(a)/11: The Governing Body accepts the recommendation of the committee regarding the grade pay for faculty and confirms that All faculty joined prior to the AICTE GR dated 5th march 2010 need to be given the grade pay of 7000 after completing 6 years for non PG, and completing 5 years for PG qualified teachers. The years should be counted from the date of joining and not from acquiring the higher qualifications. However, the upgradation from grade pay of 7000 to 8000 will take place only after acquiring PG qualification and completing 5 years in the GP of 7000.

- B. Pay fixation of the Assistant Professor as per the definition of 5th pay, who have joined prior to 01-01-2006.**

The principal apprised the members about the norms. He informed that upto VIth pay Assistant Professor was second layer cadre, lecturer used to get promoted through CAS or get directly selected as Assistant Professor. AICTE was insisting Ph.D. qualification necessary for this post, since 1999, during Vth pay recommendations. But due to shortage of PhD qualified faculty, AICTE relaxed the norm with a condition that such persons should acquire Ph.D. within 7 yrs. Government of Maharashtra, however, had not felt it necessary to possess Ph.D. qualification neither for Assistant Professor nor for even Professor position. Different Universities in the state adopted

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this differently. While Pune University insisted to acquire Ph.D within 7 years, University of Mumbai had not mentioned it till 2012. Later Government of Maharashtra made Ph.D mandatory for this second layer position, in 2012. While implementing VIth pay GB had taken a deliberate decision that Ph.D. is must for the position of Associate Professor (Assistant Professor as per the definition in Vth pay). Also, since in the VIth pay, the pay scale of the Associate Professor (Second layer position) and the pay scale of the Professor (Third layer position) are same, and AICTE is insisting Ph.D as mandatory qualification since 5th pay, the board while implementing 6th pay had decided that those who have joined as Assistant Professor prior to 01-01-2006, will be fixed in the scale of associate professor as per recommendations of the 6th pay. However, those who joined Assistant Professor after 01-01-2006 will progress till their basic pay reaches that of entry pay of professor i.e. 43,000/- (as per 6th pay). There after their increments will be stopped till they acquire Ph.D. This is how SPIT has interpreted this issue and implemented so far. Accordingly 5 teachers who have joined prior to the 01-01-2006 were exempted from Ph.D qualification and continued in the scale of associate professors. Whereas 5 faculty members who had joined after 01-01-2006 were continued in the scale of associate professor and their basic was froze (increments were blocked) after reaching the basic of Rs. 43,000/-.

The principal further informed that this decision has created unrest among these faculties. One faculty is writing to every authority like AICTE, UGC, National SC/ST commission etc. It has been noted that those who were exempted are not cautious of doing their Ph.D. They have not contributed in professional development of the institute like research publication, research funding, patent etc., and due to this inertness of these senior faculty members institute is suffering. He informed that number of Ph.D faculty is an important parameter as more the number of such faculty, institute will have more publication, more patents, more Ph.D students. The growth of research profile of the institute depends on the number of Ph.D qualified faculty. All these parameters help institute standing in NIRF ranking. Further he informed that this decision of the board though had a strong rationale, the exemption to few does not fit. If AICTE norm is to be considered, all faculty members appointed in the 5th pay regime without Ph.D, are to be frozen after 7 years from the date of joining. If the institute decides to follow the AICTE recommendations, all assistant professor appointed under 5th pay are to be frozen after completion of 7 years. The principal further remarked that unfortunately, the regulatory bodies like AICTE, University of Mumbai and Government of Maharashtra do not work in synchronism or in line or in the same tone. There are wide discrepancies in recruitment rules, CAS promotion rules. Studying all 10 cases, the GB's earlier decision in this regards the committee recommends that all assistant professors selected under 5th pay regime may be given increments till 01-01-2016, i.e. the date of implementation of the 7th pay and their increments may be stopped with a rationale that while AICTE has made Ph.D

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mandatory since 1999, these faculty members have demonstrated inertness in completing the Ph.D even in 2016, and for few, even to the date. The committee suggests that the GB to take appropriate decision in this regard. Principal informed that if this is implemented it will remove the anomalies among this layer of faculty members, will lead to recovery for few and arrears for few.

Chairman could recollect the discussions held in the meeting wherein this decision was taken. He informed GB felt that institutes which run PG/Ph.D programs, Ph.D qualification is must. For the institute to grow with autonomy, we should have more Ph.D qualified faculty. Since the Ph.D faculty is important in NIRF ranking and Accreditation, this decision was taken.

Principal informed that perhaps those faculty members whose increments were stopped perhaps have expedited the process and all have either earned the Ph.D or submitted the thesis. Whereas those cases where increments are continued, have not demonstrated enough seriousness in acquiring the Ph.D. Prof Surendra Rathod while consenting the recommendation and remarked that a wrong message was given while blocking few and continuing few.

Shri Mhatre sir requested Shri Mulla sir to comment on the legality aspects with regards to the anticipated recovery from few faculty members. Principal remarked that instead of recovery, the excess amount that would rise from implementation of this decision, can be adjusted against the would be increase in the salary due to the 7th pay implementation. He requested the GB that the institute be permitted to do the necessary adjustment instead of recovery so that whatever pay the faculty is receiving is not affected.

Shri Mulla Sir honoring the request from Mhatre sir remarked that withholding of increment is fine but this should be done softly. It should be very conciliatory. He suggested to write a letter saying why it is necessary, why it done. He suggested to establish a two-way communication with affected faculty. Principal agreed on this and requested the GB to give a clear decision in this regard. He reiterated that we have two options (a) Do not block any one as all are approved teachers (b) In pursuit of following the National norms, and institute interests, freeze the basic salary of every assistant professor without PhD from 01-01-2016 (i.e. while fixing in the 7th pay). While agreeing that Ph.D is essential for associate professor position, Shri Mhatre suggested to take enough care to avoid the legal cases. Principal assured that enough care will be taken while communicating this to the said faculty.

Prof Bhirud informed the GB that in VJTI, 4 faculty members who were not Ph.D increments were froze after 7 years. For two faculty members increments were released on the completion of the Ph.D, and for the remaining 02 who retired without completing Ph.D, retired with this frozen condition. He also narrated the case of SNDT faculty members, where in the assistant professors without Ph.D were demoted. He suggested that GB can select either of the option suggested. Principal informed the

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GB that AICTE has again and again clearly spelt out the Ph.D within 7 years is necessary for the post of assistant professors. Prof. Bhirud has confirmed that this is the stand Government is also taking.

Principal remarked that GB's earlier decision of differentiating the cases before 01-01-2006 and after 01-01-2006 has no base. Shri Mhatre sir remarked that AICTE rules will finally apply, if the legal matter arises from this decision. Principal informed that if we take option B, it is slightly different decision, we will not be following 7 years criteria instead we will be taking decision to continue increments till the 01-01-2016 and freeze the increments till Ph.D is completed. This is a bit relaxed condition considering AICTE rule, however, he pointed out that the appointment letters issued do not mention this condition and cautioned that legal cases may arise out of this implementation.

Prof Gadre informed that at IIT there was this concept of Professors of practice, based upon their known contributions other than standard publication or Ph.D. production. Inquired if among above cases, anyone has some extraordinary contributions eg strong liaison with industry, they should be asset to the institution, should contribute if paid higher salary. He wanted to know if there was a way to enforcing other contributions from such people. Shri Mhatre sir suggested that Instead of GB resolution we can say that guidelines from AICTE and DTE are being strictly enforced by GB to avoid discrimination. Shri Mhatre agreed to this and suggested to keep a separate body to take care of any disruptions on implementing, so that any faculty should not feel helpless and approach court directly but can approach the board first. Thus 7th pay to be withheld in such cases by clearly communicating elaborately to them what opportunities are given and why we are insisting them to go for Ph.D.

Hon. Chairman commented that in light of AICTE, we had appointed the fixation committee to put all in the framework. They were appointed to verify these specific cases due to slight difference in rules of AICTE, GoM, UoM etc. The committee has suggested in line with the AICTE norms, and the decision we are taking not to recover but in the overall interest of the institute to grow. For NIRF ranking etc, higher qualification is essential as we are moving towards more PG and Ph.D. program. Appointment letters need not mention what are the conditions, but promotion under CAS will be as applicable from time to time as per the rules, thus everything need not be mentioned in appointment order, even though the appointment order is valid but that does not entitle you for promotion with that rule, as rules change. He suggested Principal to go through cases and any individual case can be discussed if needed. He opinioned that in the larger interests of the institute, and to be in tune with AICTE we can go ahead with option 2 as recommended by the committee giving a message that Ph.D is essential for this position and increments will be stopped in the 7th pay and will be resumed on acquiring the Ph.D.

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Resolution 03(b)/11 : The Governing Body resolves that in order to bring the uniformity, and to be in tune with the AICTE norms, all assistant professors who were appointed prior to the 01-01-2006 in the 5th pay, and all assistant professors who were appointed after 01-01-2006 will be treated same and their increments will be stopped on the date of implementation of the 7th pay till they earn Ph.D. Instead of forcing the recovery, the excess amount will be adjusted in the applicable increase in the 7th pay.

C. Date of Ph.D. earned in case of Dr. Sukanya Kulkarni

Principal narrated the case of Dr. Sukanya Kulkarni and suggested to correct the date of Ph.D earned for resuming the increments instead of applied date of submission of the thesis. He requested to follow this practice for all the cases. All members consented to this.

Resolution 03(C)/11 : The GB resolves to consider the date of Viva-Voce as the date of Ph.D earned for all cases.

D. CAS implementation

The principal informed the GB that as per Govt. resolution, CAS promotions upto 15th Oct'15 are to be given as per Vth pay CAS conditions whereas between 17th Oct 15 till 9th Sep 2019 as per GR for the VIth pay CAS. He requested to board to resolve that CAS will be implemented as per the policies of Maharashtra. Shri Mhatre sir commented that we will follow GR for the CAS. Principal remarked that since there are many authorities, to have clarity board can decide that in case of CAS we follow GOM in totality. On which Shri Mhatre inquired if AICTE has any contrary guidelines. Principal informed that unfortunately there is no uniformity on the provisions as well as the date of implementation. Shri Mhatre sir expressed his concern that if we follow CAS guidelines of GoM for few cases, and follow AICTE for few cases, will lead to the discrimination. Principal pointed out that so far we have been consistently following GoM resolution for CAS implementation. A resolution in this regard will help the future cases or pending cases. Members agreed to this unanimously.

Resolution 03(D)/11 : The GB resolves to continue practice of following Maharashtra Government Resolutions for promotions under CAS for all cadres of faculty.

E. Consideration of industrial experience for giving the pay benefits

The principal narrated that S.P.I.T. faculty with approved teaching service was given all due increments and pay for the same although faculty may be from a college which may not be of stature of S.P.I.T., whereas persons joining after serving good industry experience nothing was considered. It was proposed that for such candidates upto three increments may be given acknowledging their industrial experience. (One increment for every two years of industrial experience.) Shri Mhatre sir appreciated

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this and commented that we can consider this and informed that few institutions have such policies.

Resolution 03(E)/11 : The GB resolves that for faculty members possessing industrial experience while joining the S.P.I.T, up to 3 increments can be given on the pro rata basis (one increment for every two years of experience), while pay fixation.

F. Resuming the increments

The principal requested the GB to resolve that increments be resumed for the faculty members whose increments were stopped for not completing the Ph.D, as and when such faculty members complete the Ph.D. All members consented to this.

Resolution 03(F)/11 : The GB resolves that faculty will resume the increment on the date of the Viva-Voce of Ph.D .

G. Consideration of the past service.

Principal briefed the GB that, as per guidelines of CAS, we had considered approved past service of the teacher for CAS promotion. He pointed out that this leads to odd situation wherein the faculty has put a long service at previous institute and then joined the SPIT, and may demand the virtual promotion. So far, we have given promotion on the day faculty joins the institution. Even though we operated like this a resolution in this regard is essential. All members agreed to this.

Resolution 03(G)/11 : The GB resolves that approved past service of the faculty will be considered for the CAS promotion and in case the past service is more than the minimum service required for CAS promotion, date of joining the institute will be considered for CAS promotion.

H. Pay fixation for faculty who were given selection grade after 01-01-2006

The principal invited attention of the GB for towards this critical case. He informed that the provision of the pay implementation GR of 6th pay was misinterpreted and wrongly two faculty members who got promoted as Lecturer in selection grade as per the CAS of 5th pay were placed in the pay band 4 (the pay band of associate professor under 6th pay) and were wrongly redesignated as Associate Professor. He pointed out that the committee recommends that the given pay band be withdrawn. This will lead to huge recovery. The Chairman expressed the concern that after redesignated as Associate Professor can those be again designated as Assistant Professor. Prof. Gadre inquired whether faculty members were aware that there could be mistake in pay implementation and recovery is possible. Principal

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informed that from every faculty member an undertaking was taken while pay fixation, indicating that the faculty member will have to return the excess amount paid, if any. However, he suggested that instead of forcing the recovery, 7th pay implementation for such cases be stopped till the amount is recovered. He further informed that entire State has done this wrong interpretation.

Prof. Bhirud informed the GB that committee has checked the 2 cases in detail and the decision is given in line with what the same committee has proposed to the Government. The incumbent definition has been wrongly interpreted in such cases. Prof Gadre remarked that If this is mistake on the part of govt or institute, the person has not falsified it would be unethical to recover such amount.

Shri Mhatre pointed out that he had headed the HR at TCS, and when companies made mistakes even if it is not the fault of employee, companies don't recover but bring it at par over a period. One way of bringing at par is not to give future benefits of VIIth pay. He confirmed that this is a standard procedure. We apologize to the person and say that his salary is leveled off till the recovery or retirement. Prof Rao cited a case of SNTD and informed the GB that the recovery was not done when the faculty took a decision to leave the institute. Prof Bhirud clarified that incidentally he was a part of committee member dealing this case. He confirmed that the recovery will be made from the concerned faculty. While agreeing to the Prof Gadre's concern, he pointed out that there are several such cases in the State of Maharashtra.

Prof. Gadre remarked that person should not suffer if it was granted in a good conscious. Addressing to this, Shri Mhatre sir remarked that DTE will not let go the money. It will recover the amount from the college if the situation arises. Chairman remarked that we can approve the refixation, but he expressed the concern over the redesignation. Principal pointed out that in cumbent lecturer selection grade were redesignated as associate professor in the 6th pay. These two faculty members were not incumbent, however, were redesignated as associate professor. Those were not selected as Associate professor. As per the 6th pay norms, clarifications of AICTE and GoM, these faculty members need to be redesignated as Assistant Professors and they can be promoted as Associate Professor as per the 6th pay condition as and when they become eligible. Chairman inquired that after 10 years now, are they eligible for Associate Professor. The principal informed that they both have acquired Ph.D now and age does not matter in CAS promotions.

Prof Rathod pointed out that there are few other cases who got promoted as Lecturer selection grade after 01-01-2006, and if we do not make this correction, those faculty members will also demand the similar wrong placement. Prof Gadre agreed to with hold the future pay benefits but clearly expressed his concern about the recovery. Prof. Bhirud suggested to take a stand regarding the recovery till the Government starts the recovery for such cases.

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Shri Mhatre finally summarized the discussions and suggested to follow what Government does for the recovery, redesignate these faculty members and withhold the future increments/pay revision benefits till the Government takes decision regarding recovery from the cases with Government.

Resolution 03(H)/11 : The GB resolves to make the necessary correction in the 6th pay fixation for faculty members who were promoted to Lecturer selection grade after 01-01-2006. The GB further resolves to redesignate them as Assistant Professor from their present designation of Associate Professor. However, the due recovery is not to be initiated till the Government starts such recovery for the faculty in Government institutions/aided institutions. The 7th pay implementation of these faculty members is to be put on hold. They need to be paid as per the corrected fixation.

4. Revision of pay scale, minimum qualification, and Career Advancement regulations.

Principal briefed the GB about the rationale. He pointed out that as authorities like AICTE, GoM and UoM work asynchronously, several problems arise. It brings in a lot of confusion and decision making becomes difficult. He stressed the necessity of clarity in this regard from the GB. He suggested that Hon. Supreme Court has ruled out that in case of differences in two regulatory authorities, the apex authority will prevail. AICTE prescribes the scales and minimum qualifications for the various positions. So far institute has followed the UoM for qualifications, GoM resolutions for the CAS. Further he informed that different universities in the State adopt the AICTE norms differently adding to the confusion. Though AICTE spells out the minimum requirements, at a times even the Government and University enjoy the autonomy to dilute these conditions. SPIT is a quality cautious institute and has high professional standing in the State. He proposed that the institute will follow the AICTE guidelines for qualifications as it is quality related aspects. Whereas for other issues such as applicable pay scale, age, service conditions, CAS promotions it will follow the GoM resolutions/UoM ordinances, as those are directly not related with the quality. All members consented to this.

Resolution 04/11 : The GB resolves that it will follow AICTE guidelines/regulations regarding qualifications of faculty in pursuit of imparting quality education and follow Government of Maharashtra resolutions with regard to pay scale and CAS promotions to match the local conditions.

5. Time to time revision in the Dearness Allowance

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Principal spelled out that the S.P.I.T so far has followed the Government of Maharashtra guidelines with regards to the pay fixation, implementing pay recommendations time to time, giving rise in the DA as per the Government. Appreciating this he informed that very few self-financed institutions in the State follow this practice and briefed about practice institute follows while giving the DA rise. He requested for formal resolution in this regard empowering the Principal to approve the DA/HRA/TA revision in consultation with the Chairman, and studying the financial impact revision. All members consented to this.

Resolution 05/11 : The GB resolved that Principal is empowered to approve the DA/HRA/TA rise, as and when Government of Maharashtra passes the related resolutions, after due consultation with the Chairman.

6. Additional item with the permission of Chair

The principal requested the Chairman for permission to put additional item for discussion. The Chairman accorded the permission. The item is related with the Ph.D deputation of the faculty members. The Principal informed that the S.P.I.T in past has shown extreme broadness and deputed few faulty members for pursuing Ph.D program for a period of 3 years. During this deputation period full salary, allowances and other benefits were given to the deputed faculty members. Even their deputation was considered as a duty period and earn leave for the period was credited. While deputing the faculty institute had taken the bond from the faculty members. As per the conditions of the bond, faculty members had to complete the Ph.D with in 5 years from the date of joining back to the institute after completing the deputation. Thus, very relaxed consideration was given for completion of the Ph.D (8 years). Normally, Ph.D is completed in 3-5 years. He pointed out that while faculty members enjoyed the benefits given, pay and perks given, could not complete the Ph.D in the stipulated time period as per the bond conditions.

He further informed that two faculty members who were deputed for Ph.D with 3 years fully paid leave, who have not completed Ph.D with in the stipulated period or left out the Ph.D program have also approached the Hon High court and University Grievance redressal cell as the institute refused to give them promotions as they were not entitled for it as per the rules and regulations. He informed that as per the condition of the bond, if the faculty fails to complete the Ph.D within stipulated period mentioned in the bond (which is almost double the normal period required to complete the Ph.D), the entire salary and allowance paid are recoverable from the faculty members. The principal requested for the guidance over the matter. Prof. Gadre felt that in such cases, where faculty was not serious about the time, despite such a support from the institute, recovery needs to be initiated.

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Shri Mhatre strongly felt that a message to be given that institute cannot be taken for a ride. Do not show any further broadness and no impression to be given that Ph.D. is a casual thing. He further pointed out that this need not be a board decision as you have a bond, this is clear case of indiscipline, you may proceed as per the same. He suggested that this is to be resolved as, "It was brought to the notice of the board and the board has confirmed and directed to start the process".

Resolution 06/11: The GB resolved that the issue of recovery of the salary and allowances paid during the Ph.D deputation of the faculty members who could not complete the Ph.D as per the bond conditions was brought to the notice of the board and the board has confirmed and directed to start the recovery process.

Addressing to the Chairman, Shri Mhatre sir suggested that the institute should have industry relations person as many matters are related with people. He pointed out that we may appoint some person who can do drafting in legal matters. Principal also stressed such a need and suggested to hire a consultant. Chairman suggested to have assignment-based appointment. Principal requested for a person who can visit once or twice in a week. The board appreciated the work of committee and thanked Prof. Bhirud and other committee members.

Meeting was adjourned with the permission of chair.

Principal
Bharatiya Vidya Bhavan's
Sardar Patel Institute of Technology
Munshi Nagar, Andheri (W),
Mumbai - 400 058.

DR. SESHU IYER
CHAIRMAN
GOVERNING BODY
Bharatiya Vidya Bhavan's
Sardar Patel Institute of Technology
Andheri(W), Mumbai-58.

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Annexure B

Action Taken Report on Decisions of 10th Governing Body Meeting

Agenda Item No.	Description	GB resolution	Action Taken
01	Confirmation of minutes	Resolution 01/11: The minutes of the 10 th meeting of the GB as enclosed in annexure A of the Agenda are confirmed noting that item 3,4, 6,7,8 and 9 will be taken in the future meetings.	The minutes will be signed and documented
03.a.	7 th Pay implementation- few issues and required revisit to the 6 th pay implementation.	Resolution 03(a)/11: The Governing Body accepts the recommendation of the committee regarding the grade pay for faculty and confirms that All faculty joined prior to the AICTE GR dated 5 th march 2010 need to be given the grade pay of 7000 after completing 6 years for non PG, and completing 5 years for PG qualified teachers. The years should be counted from the date of joining and not from acquiring the higher qualifications. However, the upgradation from grade pay of 7000 to 8000 will take place only after acquiring PG qualification and completing 5 years in the GP of 7000.	Considering the GB resolution, appropriate changes have been made in the pay fixation, the due and drawn salary details are worked out. Now the pay fixation letters will be allotted to faculty, an opportunity will be given to register their grievances, if any. The committee who has guided the pay fixation will be requested to address the faculty and settle down the grievances, if any. The 7 th pay regular salary will be given from the month of August and all arrears will be settled in the salary of Month September.
03.b.	Pay fixation of the Assistant Professor as per the definition of 5 th pay, who have joined prior to 01-01-2006.	Resolution 03(b)/11 : The Governing Body resolves that in order to bring the uniformity, and to be in tune with the AICTE norms, all assistant professors who were appointed prior to the 01-01-2006 in the 5 th pay, and all assistant professors who were appointed after 01-01-2006 will be treated same and	As above





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		<i>their increments will be stopped on the date of implementation of the 7th pay till they earn Ph.D. Instead of forcing the recovery, the excess amount will be adjusted in the applicable increase in the 7th pay.</i>	
03.c.	Date of Ph.D. earned in case of Dr. Sukanya Kulkarni	<i>Resolution 03(C)/11 : The GB resolves to consider the date of Viva-Voce as the date of Ph.D earned for all cases.</i>	Necessary changes have been incorporated in the service book and pay fixation. A letter in this regard will be issued to all faculty immediately.
03.d.	CAS implementation	<i>Resolution 03(D)/11 : The GB resolves to continue practice of following the Maharashtra Govt. Resolutions for promotions under CAS for all cadres of faculty.</i>	A letter in this regard will be issued to all faculty immediately.
03.e.	Consideration of industrial experience for giving the pay benefits	<i>Resolution 03(E)/11 : The GB resolves that for faculty members possessing industrial experience while joining the S.P.I.T, up to 3 increments can be given on the pro rata basis (one increment for every two years of experience), while pay fixation.</i>	Considering the GB resolution, appropriate changes have been made in the pay fixation, the due and drawn salary details are worked out. Now the pay fixation letters will be allotted to faculty, an opportunity will be given to register their grievances, if any. The committee who has guided the pay fixation will be requested to address the faculty and settle down the grievances, if any. The 7 th pay regular salary will be given from the month of August and all arrears will be settled in the salary of Month September.





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03.f.	Resuming the increments	Resolution 03(F)/11 : The GB resolves that faculty will resume the increment on the date of the Viva-Voce of Ph.D .	As above
03.g.	Consideration of the past service.	Resolution 03(G)/11 : The GB resolves that approved past service of the faculty will be considered for the CAS promotion and in case the past service is more than the minimum service required for CAS promotion, date of joining the institute will be considered for CAS promotion.	As above
03.h	Pay fixation for faculty who were given selection grade after 01-01-2006	Resolution 03(H)/11 : The GB resolves to make the necessary correction in the 6 th pay fixation for faculty members who were promoted to Lecturer selection grade after 01-01-2006. The GB further resolves to redesignate them as Assistant Professor from their present designation of Associate Professor. However, the due recovery is not to be initiated till the Government starts such recovery for the faculty in Government institutions/aided institutions. The 7 th pay implementation of these faculty members is to be put on hold. They need to be paid as per the corrected fixation.	As above
04.	Revision of pay scale, minimum qualification, and Career Advancement regulations.	Resolution 04/11 : The GB resolves that it will follow AICTE guidelines/regulations regarding qualifications of faculty in pursuit of imparting quality education and follow Government of Maharashtra resolutions with regard to pay scale and CAS promotions to match the local conditions.	A letter in this regard will be issued to all faculty
05.	Time to time revision in the	Resolution 05/11 : The GB resolved that Principal is empowered to approve the	As and when any TA/DA/HRA change takes





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	Dearness Allowance	<i>DA/HRA/TA rise, as and when Government of Maharashtra passes the related resolutions, after due consultation with the Chairman.</i>	place, the financial impact of the change will be discussed with the Chairman and after his approval, the change will be implemented.
06	Additional item with the permission of Chair. Regarding PhD deputation of faculty.	<i>Resolution 06/11: The GB resolved that the issue of recovery of the salary and allowances paid during the Ph.D deputation of the faculty members who could not complete the Ph.D as per the bond conditions was brought to the notice of the board and the board has confirmed and directed to start the recovery process.</i>	The recovery will be initiated from the salary of Aug 2022.

DR. SSHA IYER
CHAIRMAN
GOVERNING BODY
Bharatiya Vidya Bhavan's
Sardar Patel Institute of Technology
Andheri(W), Mumbai-58.

